

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 22-011
Amendment to Title 16, Chapter 7 of the Chickasaw Nation Code
(Legislative Ethics)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation requires its elected officials to be ethical in the performance of their duties, and

WHEREAS, the Chickasaw Tribal Legislature desires to emphasize that Legislators must protect confidential information.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Chapter 7 of the Chickasaw Nation Code (additions are shown in red, deletions are stricken through):

“SECTION 16-702 DEFINITIONS.

4. “Confidential Information” shall include the following:

 a. the appraised value, asking price or negotiations of real property being considered by the Legislature for purchase, sale, or acquisition by the Nation, until such time as the transaction becomes public record; and

 b. matters discussed by the Legislature meeting in executive session.

54. “Governor” means the chief magistrate of the Chickasaw Nation, as defined in Article X, Section 1, of the Constitution;

65. “Censure” means the formal resolution of the Chickasaw Tribal Legislature reprimanding one or more of its own members, for specified conduct.

SECTION 16-703CENSURE RESOLUTIONS.

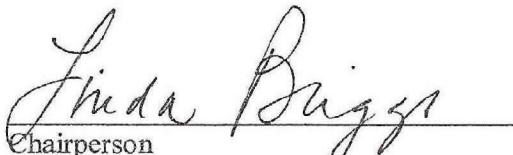
Censure of one or more Legislators may be accomplished by the adoption of a resolution by super majority vote of the members of the Legislature. Such action shall be taken only in executive session. ~~during Sessions, Regular or Special, of the Legislature.~~

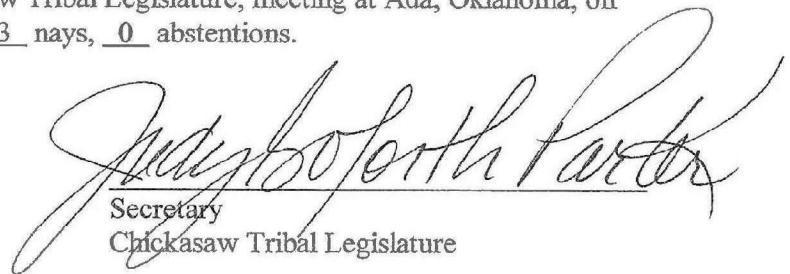
SECTION 16-707CONFIDENTIAL INFORMATION.

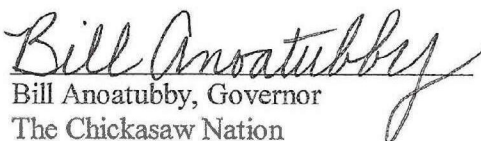
Should a Legislator be found guilty of a violation of disseminating confidential information, the Legislature, meeting in executive session, shall decide by super majority vote whether such Legislator shall be subject to the following sanctions, penalties or legal liabilities, depending upon the severity of the violation:

1. private reprimand; or
2. public reprimand."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 19, 2005, by a vote of 10 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2005

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Explanation: This resolution amends Title 16, Chapter 7 of the Chickasaw Nation Code regarding legislative ethics.

Requested By: Holly Easterling, Chairman
Legislative Ethics Ad Hoc Committee

Presented By: Holly Easterling, Chairman
Legislative Ethics Ad Hoc Committee